

If you have experienced a financial loss or some other detriment due to our error, you may be able to make a claim for compensation.

1. Types of compensation

This webpage contains information about claiming compensation for loss suffered as a result of one or more of the following situations:

- When our action caused damage to, or destruction of, your goods during the import or export process. (Statutory Compensation)
- When our actions have given rise to ‘[defective administration](#)’ (Compensation for Detriment caused by Defective Administration)
- Special circumstances arising out of Commonwealth administration (Application for Act of Grace payments or Waiver of Debt)

If you are seeking compensation, you should first complete the [online client feedback form](#). If you are not satisfied with the outcome, you can lodge a compensation claim.

If you are making a complaint in relation to a privacy issue, please go to the [privacy online feedback form](#).

If you are requesting a review of fees, charges, or levies, please contact ARHelpDesk@aff.gov.au

2. Statutory compensation

You may be able to make a claim for compensation for damaged or destroyed goods under the Biosecurity Act 2015 (Cth) or the Export Control Act 2020 (Cth), or for destroyed food, under the Imported Food Control Act 1992 (Cth).

3. Scheme for Compensation for Detriment caused by Defective Administration (CDDA Scheme)

The CDDA Scheme enables us to compensate you in circumstances where we are not legally liable and statutory compensation is not available. We can make a payment under the CDDA scheme if we agree that our administration has been defective and our defective administration has directly caused you loss. Payments made under the CDDA Scheme are discretionary, meaning a decision-maker does not have to approve your application.

Find out more about [defective administration](#) and the [CDDA Scheme](#) (Department of Finance).

Before making a claim under the CDDA Scheme

Before making a claim under the CDDA Scheme, claimants should be aware that the department is often challenged by periods of high operational demand where there are competing priorities for

available resources. In these environments every effort is made to minimise delays. The department's [Client Service Standards](#) are aspirational in nature and not binding on the department. They provide guidance for industry on how quickly the department intends to undertake steps in performing its biosecurity functions in the generality of cases.

However, the management of biosecurity risk can result in functions, including the processing of documents, or the scheduling of inspections, taking longer than the number of days specified in the [Client Service Standards](#).

The department publishes Import industry advice notices which, amongst other things, notify the import industry of changes in the department's operating environment, that are likely to have an impact on the performance of biosecurity functions.

It is unusual for decision makers to find defective administration, merely because you have experienced a timeframe in excess of the [Client Service Standards](#).

Making a claim under the CDDA Scheme

Important note: To make a claim under the CDDA Scheme, you must complete and submit the [Application Form](#).

Download

Please note: in order for the "save" and "submit" buttons to function, this form is required to be saved first onto your computer.

If you have difficulty accessing this file, please contact discretionary.compensationclaims@aff.gov.au for assistance.

Send your application

Whether you are making a statutory claim for compensation or a claim under the CDDA Scheme, you can send your application to us via email or post.

Email: discretionary.compensationclaims@aff.gov.au

Post:

Discretionary Compensation Team
Legal Division
Department of Agriculture, Fisheries and Forestry
GPO Box 858
Canberra ACT 2601

4. Act of Grace

The Australian Government can make an Act of Grace payment if the Finance Minister or the Finance Minister's delegate considers it is appropriate because of special circumstances in accordance with the Public Governance, Performance and Accountability Act 2013 (Cth).

Make an Act of Grace claim to the Department of Finance. They administer the Act of Grace scheme. For more information on Act of Grace payments please see [Act of Grace](#) (Department of Finance)

5. Waiver of debt

If the debt you are seeking to have waived has arisen as a result of fees, charges or levies for which you have been invoiced by us, the department may be able to waive (remit) some or all of the fees, charges or levies in question, depending on their nature, and on the reason you are asking for the debt to be waived.

To request a review of fees, charges or levies, please contact ARHelpDesk@aff.gov.au

The Finance Minister can waive debts owed to the Commonwealth in accordance with the Public Governance, Performance and Accountability Act 2013 (Cth). For more information on Waiver of Debt please see [Waiver of Debt](#) (Department of Finance).

Important Note: It is generally appropriate to ask us to review of the fees, charges or levies first before approaching the Department of Finance.

Source: <https://www.agriculture.gov.au/about/commitment/compensation>